

Tentative Rulings for June 22, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2502256	WICHTER VS WICHTER	MOTION FOR STAY

Tentative Ruling: In moving to stay the present action, Hanig cites the following code sections and court rules: C.C.P. §§ 1048, 1281.2, 1281.4 and CRC 3.515(f) and 3.1330. None of these provisions have any applicability here. C.C.P. §§ 1281.2 and 1281.4 relate to arbitration agreements and proceedings, as does CRC 3.1330; C.C.P. § 1048 applies to consolidation of actions involving common issues of law or fact; and CRC 3.515 applies to motions for coordination. Thus, Plaintiffs are correct that Hanig cites no legal authority to support her motion for a stay.

However, Courts have the inherent power to stay proceedings in the interest of justice and to promote judicial efficiency. (See *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; see also C.C.P., § 128(a)(3) [courts have power “[t]o provide for the orderly conduct of proceedings before it”].) When a California action involves the same parties and the same subject matter as an action already pending in a court of another jurisdiction, the court has discretion to a stay the proceedings. (*Farmland Irrigation Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215 “In exercising its discretion, the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.” (*Ibid.*))

The present case involves the alleged breach of a promissory note regarding the loan of money from Plaintiffs to Defendants. (Complaint at ¶¶ 8-20.) There is a separate family law action pending that involves the divorce of Hanig and Mitchell. However, Plaintiffs are not parties to that action. Further, the action involves the existence and alleged breach of a promissory note between Plaintiffs and Defendants. While the divorce proceeding may involve the amount of liability of each Defendant for the repayment of the loan from Plaintiffs, that issue is not necessary to the present action.

Case Management Conference vacated.

Trial Setting Conference is set for 12.10.26.

Parties to file declaration (preferably joint) 10 days in advance of hearing regarding mediation/ADR/ trial length in hours/ discovery/witnesses/interpreters/ status of settlement/special issues regarding evidence or exhibits/ any issues regarding video platform. The parties are ordered to meet and confer to select three trial dates that are agreeable to all parties. The dates selected must be on Fridays no more than six months after the trial setting conference. Failure to file can/will result in sanctions without further notice and the Court picking a trial date.

Parties directed to read and review Riverside Local Rule 3401 and the PS1 Rules governing Trial & Law and Motion posted on the Court’s website incorporated by reference into this order. Failure to comply with these rules may result in monetary, issue, or other sanctions against counsel and parties jointly and severally.